Reply OBJ 2 and 3: These arguments are based on the fact that in comparison with the good of the offspring there is more reason for divorce in an adulterous wife than in an adulterous husband. It does not follow, however, that they are not judged on a par with each other.

Reply to Objection 4: Although the husband is the head of the wife, he is her pilot as it were, and is no more her judge than she is his. Consequently in matters that have to be submitted to a judge, the husband has no more power over his wife, than she over him.

Reply to Objection 5: In adultery there is the same sinful character as in simple fornication, and something more which aggravates it, namely the lesion to marriage. Accordingly if we consider that which is common to adultery and fornication, the sin of the husband and that of the wife are compared the one to the other as that which exceeds to that which is exceeded, for in women the humors are more abundant, wherefore they are more inclined to be led by their concupiscences, whereas in man there is abundance of heat which excites concupiscence. Simply speaking, however, other things being equal, a man sins more grievously in simple fornication than a woman, because he has more of the good of reason, which prevails over all movements of bodily passions. But as regards the lesion to marriage which adultery adds to fornication and for which reason it is an occasion for divorce, the woman sins more grievously than the man, as appears from what we have said above. And since it is more grievous than simple fornication, it follows that, simply speaking, the adulterous wife sins more grievously than the adulterous husband, other things being equal.

Reply to Objection 6: Although the control which the husband receives over his wife is an aggravating circumstance, nevertheless the sin is yet more aggravated by this circumstance which draws the sin to another species, namely by the lesion to marriage, which lesion becomes a kind of injustice, through the fraudulent substitution of another's child.

Whether a husband can marry again after having a divorce?

Objection 1: It would seem that a husband can marry again after having a divorce. For no one is bound to perpetual continence. Now in some cases the husband is bound to put away his wife forever on account of fornication, as stated above (A[2]). Therefore seemingly at least in this case he can marry again.

Objection 2: Further, a sinner should not be given a greater occasion of sin. But if she who is put away on account of the sin of fornication is not allowed to seek another marriage, she is given a greater occasion of sin: for it is improbable that one who was not continent during marriage will be able to be continent afterwards. Therefore it would seem lawful for her to marry again.

Objection 3: Further, the wife is not bound to the husband save as regards the payment of the marriage debt and cohabitation. But she is freed from both obligations by divorce. Therefore "she is loosed from the law of her husband" [*Rom. 7:2]. Therefore she can marry again; and the same applies to her husband.

Objection 4: Further, it is said (Mat. 19:9): "Whosoever shall put away his wife, except it be for fornication, and shall marry another committeth adultery." Therefore seemingly he does not commit adultery if he marry again after putting away his wife on account of fornication, and consequently this will be a true marriage.

On the contrary, It is written (1 Cor. 7:10,11): "Not I, but the Lord, commandeth that the wife depart not from her husband. and, if she depart, that she remain unmarried."

Further, no one should gain advantage from sin. But the adulteress would if she were allowed to contract another and more desired marriage; and an occasion of adultery would be afforded those who wish to marry again. Therefore it is unlawful both to the wife and to the husband to contract a second marriage.

I answer that, Nothing supervenient to marriage can dissolve it: wherefore adultery does not make a marriage cease to be valid. For, according to Augustine (De Nup. et Concup. i, 10), "as long as they live they are bound by the marriage tie, which neither divorce nor union with another can destroy." Therefore it is unlawful for one, while the other lives, to marry again.

Reply to Objection 1: Although no one is absolutely bound to continence, he may be bound accidentally; for instance, if his wife contract an incurable disease that is incompatible with carnal intercourse. And it is the same if she labor under a spiritual disease, namely fornication, so as to be incorrigible.

Reply to Objection 2: The very shame of having been divorced ought to keep her from sin: and if it cannot keep her from sin, it is a lesser evil that she alone sin than that her husband take part in her sin.

Reply to Objection 3: Although after divorce the wife is not bound to her husband as regards paying him the marriage debt and cohabiting with him, the marriage tie, whereby she was bound to this, remains, and consequently she cannot marry again during her husband's lifetime. She can, however, take a vow of continence, against her husband's will, unless it seem that the Church has been deceived by false witnesses in pronouncing the divorce; for in that case, even if she has made her vow of profession she ought to be restored to her husband, and would be bound to pay the marriage debt, but it would be unlawful for her to demand it.

Reply to Objection 4: The exception expressed in our Lord's words refers to the putting away of the wife. Hence the objection is based on a false interpretation.

Whether husband and wife may be reconciled after being divorced?

Objection 1: It would seem that husband and wife may not be reconciled after being divorced. For the law contains the rule (Can. Quod bene semel, Caus. vi, qu. iv): "That which has been once well decided must not be subsequently withdrawn." Now it has been decided by the judgment of the Church that they ought to be separated. Therefore they cannot subsequently be reconciled.

Objection 2: Further, if it were allowable for them to be reconciled, the husband would seem bound to receive his wife, especially after she has repented. But he is not bound, for the wife, in defending herself before the judge, cannot allege her repentance against her husband's accusation of fornication. Therefore in no way is reconciliation allowable.

Objection 3: Further, if reconciliation were allowable, it would seem that the adulterous wife is bound to return to her husband if her husband asks her. But she is not bound, since they are separated by the Church. Therefore, etc.

Objection 4: Further, if it were lawful to be reconciled to an adulterous wife, this would especially be the case when the husband is found to have committed adultery after the divorce. But in this case the wife cannot compel him to be reconciled, since the divorce has been justly pronounced. Therefore she may nowise be reconciled.

Objection 5: Further, if a husband whose adultery is unknown put away his wife, who is convicted of adultery by the sentence of the Church, the divorce would seem to have been pronounced unjustly. And yet the husband is not bound to be reconciled to his wife, because she is unable to prove his adultery in court. Much less, therefore, is reconciliation allowable when the divorce has been granted justly.

On the contrary, It is written (1 Cor. 7:11): "And if she depart, that she remain unmarried, or be reconciled to her husband."

Further, it is allowable for the husband not to put her away after fornication. Therefore, for the same reason, he can be reconciled to her after divorce.

I answer that, If the wife has mended her ways by repenting of her sin after the divorce, her husband may become reconciled to her; but if she remain incorrigible in her sin, he must not take her back, for the same reason which forbade him to retain her while she refused to desist from sin.

Reply to Objection 1: The sentence of the Church in pronouncing the divorce did not bind them to separate, but allowed them to do so. Therefore reconciliation may be effected or ensue without any withdrawal of the previous sentence.

Reply to Objection 2: The wife's repentance should induce the husband not to accuse or put away the wife who is guilty of fornication. He cannot, however, be compelled to this course of action, nor can his wife oppose her repentance to his accusation, because although she is no longer guilty, neither in act nor in the stain of sin, there still remains something of the debt of punishment, and though this has been taken away in the sight of God, there still remains the debt of punishment to be inflicted by the judgment of man, because man sees not the heart as God does.

Reply to Objection 3: That which is done in a person's favor does him no prejudice. Wherefore since the divorce has been granted in favor of the husband, it does not deprive him of the right of asking for the marriage debt, or of asking his wife to return to him. Hence his wife is bound to pay the debt, and to return to him, if he ask her, unless with his consent she has taken a vow of continence.

Reply to Objection 4: According to strict law, a husband who was previously innocent should not be compelled to receive an adulterous wife on account of his having committed adultery after the divorce. But according to equity, the judge is bound by virtue of his office first of all to admonish him to beware of imperiling his own soul and of scandalizing others; although the wife may not herself seek reconciliation.

OF SECOND MARRIAGES (TWO ARTICLES)

In the next place we must consider second marriage. Under this head there are two points of inquiry:

(1) Whether it is lawful?

(2) Whether it is a sacrament?

Whether a second marriage is lawful?

Objection 1: It would seem that a second marriage is unlawful. Because we should judge of things according to truth. Now Chrysostom [*Hom. xxxii in the Opus Imperfectum falsely ascribed

to St. John Chrysostom] says that "to take a second husband is in truth fornication," which is unlawful. Therefore neither is a second marriage lawful.

Objection 2: Further, whatever is not good is unlawful. Now Ambrose [*On 1 Cor. 7:40 and De Viduis] says that a second marriage is not good. Therefore it is unlawful.

Objection 3: Further, no one should be debarred from being present at such things as are becoming and lawful. Yet priests are debarred from being present at second marriages, as stated in the text (Sent. iv, D, 42). Therefore they are unlawful.

Objection 4: Further, no one incurs a penalty save for sin. Now a person incurs the penalty of irregularity on account of being married twice. Therefore a second marriage is unlawful.

On the contrary, We read of Abraham having contracted a second marriage (Gn. 25:1).

Further, the Apostle says (1 Tim. 5:14): "I will . . . that the younger," namely widows, "should marry, bear children." Therefore second marriages are lawful.

I answer that, The marriage tie lasts only until death (Rom. 7:2), wherefore at the death of either spouse the marriage tie ceases: and consequently when one dies the other is not hindered from marrying a second time on account of the previous marriage. Therefore not only second marriages are lawful, but even third and so on.

Reply to Objection 1: Chrysostom is speaking in reference to the cause which is wont at times to incite a person to a second marriage, namely concupiscence which incites also to fornication.

Reply to Objection 2: A second marriage is stated not to be good, not that it is unlawful, but because it lacks the honor of the signification which is in a first marriage, where one husband has one wife, as in the case of Christ and the Church.

Reply to Objection 3: Men who are consecrated to Divine things are debarred not only from unlawful things, but even from things which have any appearance of turpitude; and consequently they are debarred from second marriages, which lack the decorum which was in a first marriage.

Reply to Objection 4: Irregularity is not always incurred on account of a sin, and may be incurred through a defect in a sacrament [*"Defectus sacramenti," i.e. defect of signification; Cf. A[2], OBJ[3]]. Hence the argument is not to the point.

Whether a second marriage is a sacrament?

Objection 1: It would seem that a second marriage is not a sacrament. For he who repeats a sacrament injures the sacrament. But no sacrament should be done an injury. Therefore if a second marriage were a sacrament, marriage ought nowise to be repeated.

Objection 2: Further, in every sacrament some kind of blessing is given. But no blessing is given in a second marriage, as stated in the text (Sent. iv, D, 42). Therefore no sacrament is conferred therein.

Objection 3: Further, signification is essential to a sacrament. But the signification of marriage is not preserved in a second marriage, because there is not a union of only one woman with only one man, as in the case of Christ and the Church. Therefore it is not a sacrament.

Objection 4: Further, one sacrament is not an impediment to receiving another. But a second marriage is an impediment to receiving orders. Therefore it is not a sacrament.

On the contrary, Marital intercourse is excused from sin in a second marriage even as in a first marriage. Now marital intercourse is excused [*Cf. Q[69], A[1]] by the marriage goods which are fidelity, offspring, and sacrament. Therefore a second marriage is a sacrament.

Further, irregularity is not contracted through a second and non-sacramental union, such as fornication. Yet irregularity is contracted through a second marriage. Therefore it is a sacramental union.

I answer that, Wherever we find the essentials of a sacrament, there is a true sacrament. Wherefore, since in a second marriage we find all the essentials of the sacrament of marriage (namely the due matter---which results from the parties having the conditions prescribed by law---and the due form, which is the expression of the inward consent by words of the present), it is clear that a second marriage is a sacrament even as a first.

Reply to Objection 1: This is true of a sacrament which causes an everlasting effect: for then, if the sacrament be repeated, it is implied that the first was not effective, and thus an injury is done to the first, as is clear in all those sacraments which imprint a character. But those sacraments which have not an everlasting effect can be repeated without injury to the sacrament, as in the case of Penance. And, since the marriage tie ceases with death, no injury is done to the sacrament if a woman marry again after her husband's death.

Reply to Objection 2: Although the second marriage, considered in itself, is a perfect sacrament, yet if we consider it in relation to the first marriage, it is somewhat a defective sacrament, because it has not its full signification, since there is not a union of only one woman with only one man as in the marriage of Christ with the Church. And on account of this defect the blessing is omitted in a second marriage. This, however, refers to the case when it is a second marriage on the part of both man and woman, or on the part of the woman only. For if a virgin marry a man who has had another wife, the marriage is blessed nevertheless. Because the signification is preserved to a certain extent even in relation to the former marriage, since though Christ has but one Church for His spouse, there are many persons espoused to Him in the one Church. But the soul cannot be espoused to another besides Christ, else it commits fornication with the devil. Nor is there a spiritual marriage. For this reason when a woman marries a second time the marriage is not blessed on account of the defect in the sacrament.

Reply to Objection 3: The perfect signification is found in a second marriage considered in itself, not however if it be considered in relation to the previous marriage, and it is thus that it is a defective sacrament.

Reply to Objection 4: A second marriage in so far as there is a defect in the sacrament, but not as a sacrament, is an impediment to the sacrament of Order.

OF THE THINGS ANNEXED TO MARRIAGE, AND FIRST OF THE PAYMENT OF THE MARRIAGE DEBT (TEN ARTICLES)

In the next place we must consider those things which are annexed to marriage: (1) the payment of the marriage debt; (2) plurality of wives; (3) bigamy; (4) the bill of divorce; (5) illegitimate children.

Under the first head there are ten points of inquiry:

(1) Whether one spouse is bound to pay the marriage debt to the other?
(2) Whether one is sometimes bound to pay without being asked?
(3) Whether a wife may demand the debt during the menses?
(4) Whether she is bound to pay it at that time?
(5) Whether husband and wife are equal in this matter?
(6) Whether the one without the other's consent may take a vow that prohibits the payment of the debt?
(7) Whether it is forbidden to ask for the debt at any particular time?
(8) Whether it is a mortal sin to ask for it at a holy time?
(9) Whether it is an obligation to pay it at the time of a festival?
(10) Whether weddings should be forbidden at certain times?

Whether husband and wife are mutually bound to the payment of the marriage debt?

Objection 1: It would seem that husband and wife are not mutually bound, under the obligation of a precept, to the payment of the marriage debt. For no one is forbidden to receive the Eucharist on account of fulfilling a precept. Yet he who has had intercourse with his wife cannot partake of the flesh of the Lamb according to Jerome [*Serm. de Esu Agni viii] quoted in the text (Sent. iv, D, 32). Therefore the payment of the debt does not come under the obligation of a precept.

Objection 2: Further, it is lawful to everyone to abstain from what is hurtful to his person. But it is sometimes harmful to a person to pay the debt when asked, whether on account of sickness, or because they have already paid it. Therefore it would seem allowable to refuse the one who asks.

Objection 3: Further, it is a sin to render oneself unfit to fulfill an obligation of precept. If, therefore, the payment of the debt comes under the obligation of a precept, it would seem sinful to render oneself unfit for paying the debt, by fasting or otherwise weakening the body: but apparently this is untrue.

Objection 4: Further, according to the Philosopher (Ethic. viii, 12), marriage is directed to the begetting and rearing of children, as well as to the community of life. Now leprosy is opposed to both these ends of marriage, for since it is a contagious disease, the wife is not bound to cohabit with a leprous husband; and besides this disease is often transmitted to the offspring. Therefore it would seem that a wife is not bound to pay the debt to a leprous husband.

On the contrary, As the slave is in the power of his master, so is one spouse in the power of the other (1 Cor. 7:4). But a slave is bound by an obligation of precept to pay his master the debt of his service according to Rom. 13:7, "Render . . . to all men their dues, tribute to whom tribute is due," etc. Therefore husband and wife are mutually bound to the payment of the marriage debt.

Further, marriage is directed to the avoiding of fornication (1 Cor. 7:2). But this could not be the effect of marriage, if the one were not bound to pay the debt to the other when the latter is troubled with concupiscence. Therefore the payment of the debt is an obligation of precept.

I answer that, Marriage was instituted especially as fulfilling an office of nature. Wherefore in its act the movement of nature must be observed according to which the nutritive power administers to the generative power that alone which is in excess of what is required for the preservation of the individual: for the natural order requires that a thing should be first perfected in itself, and that afterwards it should communicate of its perfection to others: and this is also the order of charity which perfects nature. And therefore, since the wife has power over her husband only in relation to the generative power and not in relation to things directed to the preservation of

the individual, the husband is bound to pay the debt to his wife, in matters pertaining to the begetting of children, with due regard however to his own welfare.

Reply to Objection 1: It is possible through fulfilling a precept to render oneself unfit for the exercise of a sacred duty: thus a judge becomes irregular by sentencing a man to death. In like manner he who pays the marriage debt, in fulfillment of the precept, becomes unfit for the exercise of divine offices, not because the act in question is sinful, but on account of its carnal nature. And so, according to the Master (Sent. iv, D, 32), Jerome is speaking only of the ministers of the Church, and not of others who should be left to use their own discretion, because without sin they may either abstain out of reverence or receive Christ's body out of devotion.

Reply to Objection 2: The wife has no power over her husband's body, except as is consistent with the welfare of his person, as stated above. Wherefore if she go beyond this in her demands, it is not a request for the debt, but an unjust exaction; and for this reason the husband is not bound to satisfy her.

Reply to Objection 3: If the husband be rendered incapable of paying the debt through a cause consequent upon marriage, for instance through having already paid the debt and being unable to pay it, the wife has no right to ask again, and in doing so she behaves as a harlot rather than as a wife. But if he be rendered incapable through some other cause, then if this be a lawful cause, he is not bound, and she cannot ask, but if it be an unlawful cause, then he sins, and his wife's sin, should she fall into fornication on this account, is somewhat imputable to him. Hence he should endeavor to do his best that his wife may remain continent.

Reply to Objection 4: Leprosy voids a betrothal but not a marriage. Wherefore a wife is bound to pay the debt even to a leprous husband. But she is not bound to cohabit with him, because she is not so liable to infection from marital intercourse as from continual cohabitation. And though the child begotten of them be diseased, it is better to be thus than not at all.

Whether a husband is bound to pay the debt if his wife does not ask for it?

Objection 1: It would seem that the husband is not bound to pay the marriage debt if his wife does not ask for it. For an affirmative precept is binding only at a certain time. But the time fixed for the payment of the debt can only be when it is asked for. Therefore he is not bound to payment otherwise.

Objection 2: Further, we ought to presume the better things of everyone. Now even for married people it is better to be continent than to make use of marriage. Therefore unless she ask expressly for the debt, the husband should presume that it pleases her to be continent, and so he is not bound to pay her the debt.

Objection 3: Further, as the wife has power over her husband, so has a master over his slave. Now a slave is not bound to serve his master save when the latter commands him. Therefore neither is a husband bound to pay the debt to his wife except when she demands it.

Objection 4: Further, the husband can sometimes request his wife not to exact the debt when she asks for it. Much more therefore may he not pay it when he is not asked.

On the contrary, By the payment of the debt a remedy is afforded against the wife's concupiscence. Now a physician who has the care of a sick person is bound to remedy the disease without being asked. Therefore the husband is bound to pay the debt to his wife although she ask

not for it. Further, a superior is bound to apply a remedy for the sins of his subjects even though they rebel against it. But the payment of the debt on the husband's part is directed against the sins of his wife. Therefore sometimes the husband is bound to pay the debt to his wife even though she ask it not of him.

I answer that, The debt may be demanded in two ways. First, explicitly, as when they ask one another by words; secondly, implicitly, when namely the husband knows by certain signs that the wife would wish him to pay the debt, but is silent through shame. And so even though she does not ask for the debt explicitly in words, the husband is bound to pay it, whenever his wife shows signs of wishing him to do so.

Reply to Objection 1: The appointed time is not only when it is demanded but also when on account of certain signs there is fear of danger (to avoid which is the purpose of the payment of the debt) unless it be paid then.

Reply to Objection 2: The husband may presume this of his wife when he perceives in her no signs of the contrary; but it would be foolish of him to admit this presumption if he does see such signs.

Reply to Objection 3: The master is not ashamed to demand of his slave the duty of his service, as a wife is to ask the marriage debt of her husband. Yet if the master were not to demand it, either through ignorance or some other cause, the slave would nevertheless be bound to fulfill his duty, if some danger were threatening. For this is what is meant by "not serving to the eye" (Eph. 6:6; Col. 3:22) which is the Apostle's command to servants.

Reply to Objection 4: A husband should not dissuade his wife from asking for the debt, except for a reasonable cause; and even then he should not be too insistent, on account of the besetting danger.

Whether it is allowable for a menstruous wife to ask for the marriage debt? [*This and the Fourth Article are omitted in the Leonine edition.]

Objection 1: It would seem lawful for a menstruous wife to ask for the marriage debt. For in the Law a man who had an issue of seed was unclean, even as a menstruous woman. Yet a man who has an issue of seed may ask for the debt. Therefore a menstruous wife may also.

Objection 2: Further, leprosy is a worse complaint than suffering from monthly periods, and would seem to cause a greater corruption in the offspring. Yet a leper can ask for the debt. Therefore, etc.

Objection 3: Further, if a menstruous wife is not allowed to ask for the debt, this can only be because it is feared this may be detrimental to the offspring. Yet if the wife be unfruitful there is no such fear. Therefore, seemingly, at least an unfruitful wife may ask for the debt during her menses.

On the contrary, "Thou shalt not approach to a woman having her flowers" (Lev. 18:19) where Augustine observes: "Although he has already sufficiently forbidden this he repeats the prohibition here lest he seem to have spoken figuratively."

Further, "All our justices" are become "as the rag of a menstruous woman" (Is. 64:6) where Jerome observes: "Men ought then to keep away from their wives because thus is a deformed blind

lame leprous offspring conceived: so that those parents who are not ashamed to come together in sexual intercourse have their sin made obvious to all": and thus the same conclusion follows.

I answer that, It was forbidden in the Law to approach to a menstruous woman, for two reasons both on account of her uncleanness, and on account of the harm that frequently resulted to the offspring from such intercourse. With regard to the first reason, it was a ceremonial precept, but with regard to the second it was a moral precept. For since marriage is chiefly directed to the good of the offspring, all use of marriage which is intended for the good of the offspring is in order. Consequently this precept is binding even in the New Law on account of the second reason, although not on account of the first. Now, the menstrual issue may be natural or unnatural. The natural issue is that to which women are subject at stated periods when they are in good health; and it is unnatural when they suffer from an issue of blood through some disorder resulting from sickness. Accordingly if the menstrual flow be unnatural it is not forbidden in the New Law to approach to a menstruous woman both on account of her infirmity since a woman in that state cannot conceive, and because an issue of this kind is lasting and continuous, so that the husband would have to abstain for always. When however the woman is subject to a natural issue of the menstruum, she can conceive; moreover, the said issue lasts only a short time, wherefore it is forbidden to approach to her. In like manner a woman is forbidden to ask for the debt during the period of that issue.

Reply to Objection 1: The issue of seed in a man is the result of infirmity, nor is the seed in this case apt for generation. Moreover a complaint of this kind is continual or lasting like leprosy: wherefore the comparison falls.

This suffices for the Reply to the Second Objection.

Reply to Objection 3: As long as a woman is subject to the menses it cannot be certain that she is sterile. For some are sterile in youth, and in course of time become fruitful, and "vice versa," as the Philosopher observes (De Gener. Anim. xvi).

Whether a menstruous woman should or may lawfully pay the marriage debt to her husband if he ask for it? [*This and the previous article are omitted in the Leonine edition.]

Objection 1: It would seem that a menstruous wife may not pay the marriage debt to her husband at his asking. For it is written (Lev. 20:18) that if any man approach to a menstruous woman both shall be put to death. Therefore it would seem that both he who asks and she who grants are guilty of mortal sin.

Objection 2: Further, "Not only they that do them but they also that consent to them are worthy of death" (Rom. 1:32). Now he who knowingly asks for the debt from a menstruous woman sins mortally. Therefore she also sins mortally by consenting to pay the debt.

Objection 3: Further, a madman must not be given back his sword lest he kill himself or another. Therefore in like manner neither should a wife give her body to her husband during her menses, lest he be guilty of spiritual murder.

On the contrary, "The wife hath not power of her own body, but the husband" (1 Cor. 7:4). Therefore at his asking his wife must pay the debt even during her menses.

Further, the menstruous wife should not be an occasion of sin to her husband. But she would give her husband an occasion of sin, if she paid him not the debt at his asking; since he might commit fornication. Therefore, etc.

I answer that, In this regard some have asserted that a menstruous woman may not pay the debt even as she may not ask for it. For just as she would not be bound to pay it if she had some personal ailment so as to make it dangerous for herself, so is she not bound to pay for fear of danger to the offspring. But this opinion would seem to derogate from marriage, by which the husband is given entire power of his wife's body with regard to the marriage act. Nor is there any parallel between bodily affliction of the offspring and the danger to her own body: since, if the wife be ailing, it is quite certain that she would be endangered by the carnal act, whereas this is by no means so certain with regard to the offspring which perhaps would not be forthcoming.

Wherefore others say that a menstruous woman is never allowed to ask for the debt; and that if her husband ask, he does so either knowingly or in ignorance. If knowingly, she ought to dissuade him by her prayers and admonitions; yet not so insistently as possibly to afford him an occasion of falling into other, and those sinful, practices, if he be deemed that way inclined. If however, he ask in ignorance, the wife may put forward some motive, or allege sickness as a reason for not paying the debt, unless there be fear of danger to her husband. If, however, the husband ultimately persists in his request, she must yield to his demand. But it would not be safe for her to make known [*"Indicare," as in the commentary on the Sentences; the Leonine edition reads "judicare."] her disaffection, lest this make her husband entertain a repulsion towards her, unless his prudence may be taken for granted.

Reply to Objection 1: This refers to the case when both willingly consent, but not when the woman pays the debt by force as it were.

Reply to Objection 2: Since there is no consent without the concurrence of the will, the woman is not deemed to consent in her husband's sin unless she pay the debt willingly. For when she is unwilling she is passive rather than consenting.

Reply to Objection 3: A madman should be given back his sword if a greater danger were feared from its not being returned to him: and thus it is in the case in point.

Whether husband and wife are equal in the marriage act?

Objection 1: It would seem that husband and wife are not equal in the marriage act. For according to Augustine (Gen. ad lit. xii) the agent is more noble than the patient. But in the marriage act the husband is as agent and the wife as patient. Therefore they are not equal in that act.

Objection 2: Further, the wife is not bound to pay her husband the debt without being asked; whereas he is so bound, as stated above (AA[1],2). Therefore they are not equal in the marriage act.

Objection 3: Further, the woman was made on the man's account in reference to marriage according to Gn. 2:18, "Let us make him a help like unto himself." But that on account of which another thing is, is always the principal. Therefore, etc.

Objection 4: Further, marriage is chiefly directed to the marriage act. But in marriage "the husband is the head of the wife" (Eph. 5:23). Therefore they are not equal in the aforesaid act.

On the contrary, It is written (1 Cor. 7:4): "The husband . . . hath not power of his own body," and the same is said of the wife. Therefore they are equal in the marriage act.

Further, Marriage is a relation of equiparence, since it is a kind of union, as stated above (Q[44], AA[1],3). Therefore husband and wife are equal in the marriage act.

I answer that, Equality is twofold, of quantity and of proportion. Equality of quantity is that which is observed between two quantities of the same measure, for instance a thing two cubits long and another two cubits in length. But equality of proportion is that which is observed between two proportions of the same kind as double to double. Accordingly, speaking of the first equality, husband and wife are not equal in marriage; neither as regards the marriage act, wherein the more noble part is due to the husband, nor as regards the household management, wherein the wife is ruled and the husband rules. But with reference to the second kind of equality, they are equal in both matters, because just as in both the marriage act and in the management of the household the husband is bound to the wife in all things pertaining to the husband, so is the wife bound to the husband in all things pertaining to the wife. It is in this sense that it is stated in the text (Sent. iv, D, 32) that they are equal in paying and demanding the debt.

Reply to Objection 1: Although it is more noble to be active than passive, there is the same proportion between patient and passivity as between agent and activity; and accordingly there is equality of proportion between them.

Reply to Objection 2: This is accidental. For the husband having the more noble part in the marriage act, it is natural that he should be less ashamed than the wife to ask for the debt. Hence it is that the wife is not bound to pay the debt to her husband without being asked, whereas the husband is bound to pay it to the wife.

Reply to Objection 3: This proves that they are not equal absolutely, but not that they are not equal in proportion.

Reply to Objection 4: Although the head is the principal member, yet just as the members are bound to the head in their own respective capacities, so is the head in its own capacity bound to the members: and thus there is equality of proportion between them.

Whether husband and wife can take a vow contrary to the marriage debt without their mutual consent?

Objection 1: It would seem that husband and wife may take a vow contrary to the marriage debt without their mutual consent. For husband and wife are equally bound to pay the debt, as stated above (A[5]). Now it is lawful for the husband, even if his wife be unwilling, to take the cross in defense of the Holy Land: and consequently this is also lawful to the wife. Therefore, since this prevents the payment of the debt, either husband or wife may without the other's consent take the aforesaid vow.

Objection 2: Further, in taking a vow one should not await the consent of another who cannot dissent without sin. Now the husband or wife cannot, without sin, refuse their consent to the other's taking a vow of continence whether absolutely or for a time; because to prevent a person's spiritual progress is a sin against the Holy Ghost. Therefore the one can take a vow of continence either absolutely or for a time, without the other's consent.

Objection 3: Further, in the marriage act, the debt has to be demanded just as it has to be paid. Now the one can, without the other's consent, vow not to demand the debt, since in this he is within his own rights. Therefore he can equally take a vow not to pay the debt.

Objection 4: Further, no one can be bound by the command of a superior to do what he cannot lawfully vow or do simply, since one must not obey in what is unlawful. Now the superior authority might command the husband not to pay the debt to his wife for a time, by occupying him in some

service. Therefore he might, of his own accord, do or vow that which would hinder him from paying the debt.

On the contrary, It is written (1 Cor. 7:5): "Defraud not one another, except . . . by consent, for a time, that you may give yourselves to prayer."

Further, no one can vow that which belongs to another. Now "the husband . . . hath not power of his own body, but the wife" (1 Cor. 7:4). Therefore, without her consent, the husband cannot take a vow of continence whether absolutely or for a time.

I answer that, A vow is a voluntary act, as its very name implies: and consequently a vow can only be about those goods which are subject to our will, and those in which one person is bound to another do not come under this head. Therefore in matters of this kind one person cannot take a vow without the consent of the one to whom he is bound. Consequently, since husband and wife are mutually bound as regards the payment of the debt which is an obstacle to continence, the one cannot vow continence without the other's consent; and if he take the vow he sins, and must not keep the vow, but must do penance for an ill-taken vow [*Cf. Q[53], AA[1],4; Q[61], A[1]].

Reply to Objection 1: It is sufficiently probable that the wife ought to be willing to remain continent for a time, in order to succor the need of the universal Church. Hence in favor of the business for which the cross is given to him, it is laid down that the husband may take the cross without his wife's consent, even as he might go fighting without the consent of his landlord whose land he has leased. And yet the wife is not entirely deprived of her right, since she can follow him. Nor is there a parallel between wife and husband: because, since the husband has to rule the wife and not "vice versa," the wife is bound to follow her husband rather than the husband the wife. Moreover there would be more danger to the wife's chastity as a result of wandering from country to country, than to the husband's, and less profit to the Church. Wherefore the wife cannot take this vow without her husband's consent.

Reply to Objection 2: The one spouse, by refusing to consent to the other's vow of continence, does not sin, because the object of his dissent is to hinder not the other's good, but the harm to himself.

Reply to Objection 3: There are two opinions on this point. For some say that one can without the other's consent vow not to demand the debt, not however not to pay it, because in the former case they are both within their own rights, but not in the second. Seeing, however, that if one were never to ask for the debt, marriage would become too burdensome to the other who would always have to undergo the shame of asking for the debt, others assert with greater probability that neither vow can be lawfully taken by one spouse without the other's consent.

Reply to Objection 4: Just as the wife receives power over her husband's body, without prejudice to the husband's duty to his own body, so also is it without prejudice to his duty to his master. Hence just as a wife cannot ask her husband for the debt to the detriment of his bodily health, so neither can she do this so as to hinder him in his duty to his master. And yet the master cannot for this reason prevent her from paying the debt.

Whether it is forbidden to demand the debt on holy days?

Objection 1: It would seem that a person ought not to be forbidden to ask for the debt on holy days. For the remedy should be applied when the disease gains strength. Now concupiscence may